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MAHATMA GANDHI UNIVERSITY, KOTTAYAM

MGU-UGP (HONOURS) REGULAR EXAMINATION MARCH 2025

SECOND SEMESTER

DISCIPLINE SPECIFIC COURSE (DSC) – MG2DSCFSC100- LAW FOR FORENSIC SCIENCE

(2024 Admission onwards)

Duration: 2 hours Maximum Marks :50

Part A

Short answer type questions

1. Definition / Introduction of Directive Principles of state policy(1 Mark)
   Types and significance of Directive Principles of state policy (1 Mark)

2. Presumption of Fact (1 Mark)
   Based on logic, human experience, or natural inference from a fact.
   Presumption of Law (1 Mark)
   Based on legal rules or statutory provisions.

3. Definition and Nature of Sin, Vices and tort (2 Mark)
   Sin (1 Mark), Vices (0.5 Mark), Tort (0.5 mark)

4. Preliminary Role (1 Mark)
   A Magistrate can order an investigation under Section 156(3) CrPC upon receiving a complaint.
   Supervisory Role (1 Mark)
   Can monitor the investigation, ensure it's fair and legal.

5. Purpose / Objective (1 Mark)
   To promote social justice and equality by uplifting disadvantaged and marginalized groups.
   Ensures protection and advancement of SCs, STs, OBCs, women, children, and minorities.

   Constitutional Provisions / Impact (1 Mark)
   Articles 15(4), 15(5), 16(4), 46: Provide for reservations in education, employment, and socio-economic development.

6. Definition (2 Marks) – ***This question is out of syllabus (if something relevant written and tried to attempt the question the marks can be given)***
   A consecutive sentence is a type of sentence where a convict is required to serve multiple sentences one after the other, not simultaneously.

7. Definition and explanation(1+1 Mark)
   The preventive theory focuses on preventing the offender from committing further crimes by detaining, incapacitating, or isolating them.
   It aims at protecting society rather than reforming or retaliating.

8. Definition (Legal Meaning) (2 Marks)
   As per Section 3 of the Indian Evidence Act, 1872, *evidence*. Any valid definition of evidence

9. Definition / Concept (2Marks)
   A fair trial is a legal proceeding conducted impartially, where the accused is given a reasonable opportunity to defend themselves.

10. Definition / Concept (1 Mark)
    Protected areas are geographically defined spaces recognized under the Wildlife Protection Act, 1972, meant for the protection and conservation of wildlife and their habitats.

    Types of Protected Areas (1 Mark)
    Includes National Parks (Section 35), Wildlife Sanctuaries (Section 18), Conservation Reserves (Section 36A), and Community Reserves (Section 36C)

11. Purpose / Role (2 Marks)
    Correctional institutions, such as prisons and reformatories, play a crucial role in rehabilitating offenders, helping them reintegrate into society.
    Focus on deterrence, punishment, and prevention of future crimes through structured reform programs.

12. Punishments for Offenses (1.5 Marks)
    Possession of narcotic drugs or psychotropic substances: (0.5)

    a. Section 20: Imprisonment for up to 6 months or fine, or both.
    b. Section 21: For manufacturing, possessing, or selling narcotics, penalties range from 10 years to life imprisonment and a fine of up to ₹1 lakh.

Part B

Short essay type questions

13. Stages of Crime (4 Marks)

1. Intention (Mens Rea): The mental state or intent of the individual to commit a crime. This is a key element in criminal law.
2. Preparation: The criminal begins to plan the crime. Actions are taken to arrange the means to commit the offense.
3. Attempt: The individual actively engages in actions to commit the crime, but the crime is not fully carried out due to some interruption or failure.
4. Commission: The final execution of the crime, where the act is completed and the crime is fully committed.

14. This question is out of syllabus (if something relevant written and tried to attempt the question the marks can be given) In a concurrent sentence, if an individual is sentenced for multiple offenses, they serve the sentences simultaneously. (Explanation 2 mark)

In a consecutive sentence, the individual serves the sentences one after the other. (Explanation 2 mark)

15. Introduction / Role of the Supreme Court (1 Mark)
    The Supreme Court of India, established under Article 124 of the Constitution, is the highest judicial authority in the country.

    Powers of the Supreme Court (2 Marks)
    Judicial Power, Original Jurisdiction, Appellate Jurisdiction, Advisory Jurisdiction

    Functions of the Supreme Court (1 Mark)
    Guardian of Fundamental Rights, Interpreting Laws, Ensuring Justice

16. Definition of Cognizable Offenses (1 Mark)
    Cognizable offenses are serious offenses where the police have the authority to arrest the accused without a warrant and start an investigation without the permission of a magistrate (Section 2(c), Indian Penal Code).

    Definition of Non-Cognizable Offenses (1 Mark)
    Non-cognizable offenses are less serious offenses where the police cannot arrest without a warrant and cannot initiate an investigation without the magistrate's approval (Section 2(l), Indian Penal Code).

    Procedure for Investigating Cognizable Offenses (1 Mark)
    Procedure for Investigating Non-Cognizable Offenses (1 Mark)

17. Introduction to Culpable Homicide and Murder (2 Mark)
    Culpable Homicide (Section 299, IPC) is a more general term for causing death with intent or knowledge that it could cause death, but the offense may not be as serious as murder.
    Murder (Section 300, IPC) is the intentional killing of a person with specific intent or knowledge to cause death or cause injury likely to cause death.

    Role of Intent in Differentiation (2 Marks)
    Culpable Homicide: The intent may be present, but it lacks the specific intention to kill. For example, causing death without premeditation or malice, or under provocation.
    Murder: There is a clear intent to kill or cause serious harm leading to death. The degree of intent in murder is more specific and premeditated.

18. Introduction / Definition (2 Mark)
    Classification of Narcotic Drugs and Psychotropic Substances (1 Mark)
    Legal Regulation (1 Mark)
    The Narcotic Drugs and Psychotropic Substances Act, 1985 regulates the production, manufacture, possession, sale, and consumption of these substances.

19. Introduction to Fundamental Duties (1 Mark)
Key Features (3 Marks)
Enumerated Duties: There are 11 duties listed under Article 51A, including:

To respect the Constitution, national flag, and national anthem.
To promote harmony and the spirit of common brotherhood among all people.
To protect the environment and wildlife.
To safeguard public property and abstain from violence.

Non-Enforceability: These duties are not legally enforceable by the courts, but they serve as a moral guide for responsible citizenship.

Part C

Essay type questions

20. This question is out of syllabus (if something relevant written and tried to attempt the question the marks can be given)

Introduction to IPC and its Scope (2 Mark)
The Indian Penal Code (IPC), established in 1860, is the primary criminal code in India, which defines offenses and prescribes punishments.

Extraterritorial Applicability of the IPC (4 Marks)
Indian Jurisdiction Beyond Borders: Under Section 4, the IPC extends its operation to crimes committed outside India when they involve Indian nationals or government interests (such as a crime committed by an Indian citizen on a foreign ship).

Important Provisions Under IPC Regarding Crimes Outside India (4 Marks)
Section 5: An Indian citizen who commits an offense outside India will be punishable under IPC as if the offense had been committed within India, subject to Indian laws.
(or relevant)

21. Explanation of Summary Trials and Their Scope (2 Marks)

Summary trials (Sections 260-265, CrPC) are used for minor offenses where the procedure is simplified to speed up the process.

Abridged Judgments under Section 355 of the CrPC (4 Marks)
Section 355 of the CrPC allows a judge to deliver an abridged judgment in summary trials. This provision is typically used to shorten the judgment delivery in cases where the evidence is clear and the case is not complex.

Role of the Prosecutor (2 Marks)
The prosecution is responsible for presenting evidence and making the case against the defendant. In a regular trial, the prosecution has to prove the guilt of the defendant beyond a reasonable doubt.

Role of the Defense Counsel (2 Marks)
The defense counsel’s role is to challenge the prosecution's evidence, cross-examine witnesses, and provide a defense for the defendant.